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6 **IN THE UNITED STATES DISTRICT COURT**
7 **FOR THE DISTRICT OF ARIZONA**
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9		No. CV
10	Plaintiff,	CASE MANAGEMENT ORDER — SOCIAL SECURITY
11	v.	
12	Commissioner of Social Security	
13	Administration,	
14	Defendant.	

15 Plaintiff brings this action for review of the determination of the Commissioner of
16 the Social Security Administration (the “Commissioner”). The Clerk of Court assigned this
17 case to the expedited track pursuant to Local Rule of Civil Procedure 16.2(b)(1)(A)(i).
18 Pursuant to Local Rule 16.2(b)(1)(B), the court issues this Case Management Order
19 without holding a scheduling conference.

20 The Supplemental Rules for Social Security Actions Under 42 U.S.C. § 405(g)
21 (2022) state:

22 **Rule 6. Plaintiff’s Brief**

23 The plaintiff must file and serve on the Commissioner a brief for the
24 requested relief within 30 days after the answer is filed[.]

25 **Rule 7. Commissioner’s Brief**

26 The Commissioner must file a brief and serve it on the plaintiff within 30
27 days after service of the plaintiff’s brief.

28 **Rule 8. Reply Brief**

The plaintiff may file a reply brief and serve it on the Commissioner within
14 days after service of the Commissioner’s brief.

1 See also Local Rule 16.1. The court adopts the deadlines in these Rules as the schedule in
2 this case.

3 The parties must review Local Rule Civil 16.1 for the requirements regarding the
4 content and length of their briefs before this court. The Local Rules can be accessed at
5 www.azd.uscourts.gov/local-rules.

6 In *Magallanes v. Bowen*, 881 F.2d 747, 750 (9th Cir. 1989), the Court of Appeals
7 explained that the Commissioner's decision to deny benefits would be overturned "only if
8 it is not supported by substantial evidence or is based on legal error." Correspondingly,
9 under the Local Rules, a general allegation that the Commissioner committed legal error,
10 or that the Commissioner's determination is not supported by substantial evidence, is
11 insufficient to raise that issue for review. See *Greenwood v. FAA*, 28 F.3d 971, 977 (9th
12 Cir. 1994) (internal citation omitted) ("We review only issues which are argued specifically
13 and distinctly in a party's opening brief. We will not manufacture arguments for an
14 appellant, and a bare assertion does not preserve a claim . . .").

15 If either party fails to timely file a brief in full compliance with this order, the court
16 may strike the non-complying brief, dismiss the case, or remand to the agency, as
17 appropriate. See generally Fed. R. Civ. P. 41(b).

18 Accordingly,

19 **IT IS ORDERED** that this case, including all deadlines, shall be governed by the
20 Rules referenced herein.
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